

IN THE SUPERIOR COURT OF WASHINGTON
KING COUNTY

Case No. 25-2-12345-8 SEA

MIDWEST TECH SOLUTIONS, LLC,
Plaintiff,

v.

OCEANIC DATA SYSTEMS, INC.,
Defendant.

ANSWER AND AFFIRMATIVE DEFENSES OF OCEANIC DATA SYSTEMS, INC.

Defendant Oceanic Data Systems, Inc. ("Defendant"), by and through its undersigned counsel, hereby answers the Complaint filed by Plaintiff Midwest Tech Solutions, LLC ("Plaintiff") and asserts affirmative defenses as follows:

I. INTRODUCTION

1. Defendant admits that it is a Washington corporation with its principal place of business in Seattle, Washington.
2. Defendant lacks knowledge or information sufficient to form a belief about the truth of the allegations contained in paragraphs 2, 4, 7, and 15 of the Complaint, and therefore denies the same.
3. Defendant denies each and every other allegation contained in the Complaint not expressly admitted herein.

II. ANSWER TO SPECIFIC ALLEGATIONS

4. Paragraph 1: Defendant admits that Plaintiff is a limited liability company registered in the State of Washington.
5. Paragraph 3: Defendant admits that the alleged contract between Plaintiff and Defendant was entered into on February 1, 2025, but denies the terms and conditions as alleged by Plaintiff.
6. Paragraph 5: Defendant denies that it breached any contractual obligation to Plaintiff as alleged.
7. Paragraph 6: Defendant admits that it provided certain software services to Plaintiff, but denies that such services were deficient or in violation of any agreed terms.
8. Paragraph 8: Defendant denies the allegation that it failed to meet the March 31, 2026 deadline for delivery of the customized data analytics module.
9. Paragraph 9: Defendant admits that Plaintiff made a payment of \$150,000 on April 15, 2026, but denies that any sums remain unpaid or due to Plaintiff.
10. Paragraph 11: Defendant denies that Plaintiff is entitled to the damages claimed or any injunctive relief as alleged.

III. AFFIRMATIVE DEFENSES

First Affirmative Defense - Failure to State a Claim

11. The Complaint fails to state a claim upon which relief can be granted.

Second Affirmative Defense · Compliance with Contract Terms

12. Defendant performed all obligations under the contract dated February 1, 2025, in good faith and in accordance with the agreed-upon specifications and deadlines.

Third Affirmative Defense · Plaintiff's Breach and Failure to Cooperate

13. Plaintiff materially breached the contract by failing to provide necessary data inputs and approvals by the deadlines set forth in Section 4(a) of the contract, causing delays and limiting Defendant's ability to fulfill its obligations.

Fourth Affirmative Defense · Waiver and Estoppel

14. Plaintiff waived any alleged breaches by acceptance of Defendant's continued performance and payments made. Plaintiff is estopped from asserting claims based on such alleged breaches due to its own conduct.

Fifth Affirmative Defense · Offset and Setoff

15. Defendant is entitled to an offset for costs incurred due to Plaintiff's failure to provide timely data and delayed approvals, totaling \$75,000, which offsets any alleged damages claimed by Plaintiff.

Sixth Affirmative Defense · No Entitlement to Injunctive Relief

16. Plaintiff is not entitled to injunctive relief because it has an adequate remedy at law, and Plaintiff's claims are not imminent or irreparable.

IV. COUNTERCLAIM FOR DECLARATORY RELIEF AND INJUNCTIVE RELIEF

17. Defendant incorporates by reference the foregoing paragraphs as if fully set forth herein.

18. An actual controversy exists between Plaintiff and Defendant concerning their respective rights and obligations under the contract dated February 1, 2025.

19. Defendant requests this Court declare that it has fully performed its contractual obligations and that Plaintiff is not entitled to any damages or injunctive relief.

20. Defendant further requests the Court enter a preliminary and permanent injunction preventing Plaintiff and its agents from disseminating any false or misleading statements regarding Defendant's performance under the contract to third parties or the public.

V. PRAYER FOR RELIEF

WHEREFORE, Defendant respectfully requests that this Court:

- a. Dismiss Plaintiff's Complaint with prejudice and award Defendant its costs and attorneys' fees as permitted by law;
- b. Declare that Defendant has fulfilled all contractual obligations to Plaintiff;
- c. Enter a preliminary and permanent injunction enjoining Plaintiff, its officers, employees, agents, and all persons acting in concert with Plaintiff from making defamatory or false statements regarding Defendant's performance or reputation;
- d. Award Defendant such other and further relief as the Court deems just and proper.

DATED this 14th day of March, 2027.

Respectfully submitted,

WATERS & BRIGGS LLP

By: /s/ Sarah J. Walters
Sarah J. Walters, WSBA #44221
Attorney for Defendant
Oceanic Data Systems, Inc.
1201 Fourth Avenue, Suite 2500
Seattle, WA 98101
Phone: (206) 555-0198
Email: swalters@watersbriggs.com

CERTIFICATE OF SERVICE

I hereby certify that on March 14, 2027, I caused a true and correct copy of the foregoing Answer and Affirmative Defenses of Oceanic Data Systems, Inc. to be served via the Washington Court E-Filing System and by email upon counsel for Plaintiff as follows:

Michael R. Temple
Temple & Associates, PLLC
500 University Street, Suite 600
Seattle, WA 98101
Email: michael.temple@templelaw.com

/s/ Sarah J. Walters
Sarah J. Walters